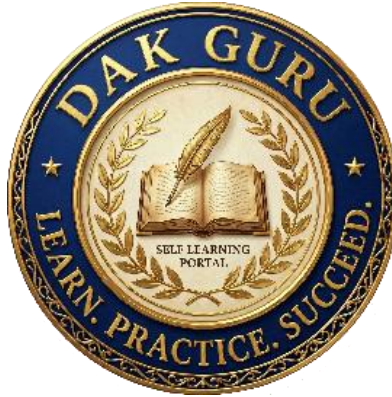




DAK GURU

A SELF-LEARNING PORTAL

Learn. Practice. Succeed.

Central Civil Services (Leave) Rules, 1972

A Complete, Rule-by-Rule Study & Reference Guide

VERIFIED & UPDATED

Reflecting the consolidated CCS (Leave) Rules as on 24.09.2024, the surrogacy amendment [G.S.R. 331(E), 18.06.2024], and DoPT O.M. dated 08.04.2025.

www.dakguru.com

Prepared for departmental examination aspirants — Inspector of Posts (IP) and PS Group 'B'

DISCLAIMER & HOW TO READ THIS BOOKLET

◆ PLEASE READ BEFORE YOU BEGIN

This booklet has been prepared **strictly as a study aid** for departmental examination aspirants. Every figure, time-limit and condition has been cross-checked against primary sources — the consolidated rules published by the **Department of Personnel & Training (DoPT)**, the relevant Gazette notifications, and the official DoPT Casual / Special Casual Leave Brochure.

Even so, service rules change frequently. Before quoting any provision in an examination answer or applying it in office, **verify it against the latest consolidated CCS (Leave) Rules, 1972 on dopt.gov.in and the governing Gazette notification.** Where the official text and this booklet differ, the **official text prevails**.

✓ THE COLOUR-CODED BOXES IN THIS BOOKLET

Throughout the notes you will meet five kinds of boxes. Learn them once and skim faster forever:

- ◆ **UPDATE / NEW** — a recent amendment or order that older study material usually misses.
- ✓ **VERIFIED** — a point where sources conflict and the correct, current figure has been confirmed.
- ▶ **WORKED EXAMPLE** — a numerical illustration of how a rule is applied.
- ! **EXAM TRAP** — a common confusion or a figure examiners love to test.
- ✱ **MEMORY HOOK** — a quick mnemonic to lock a number in place.

§ PRINCIPAL SOURCES RELIED UPON

- **Principal Rules** — S.O. 940 dated 15.03.1972; in force from 01.06.1972.
- **Fourth Amendment Rules, 2018** — **G.S.R. 1209(E) dated 11.12.2018** (effective 14.12.2018): Vacation-Dept. EL (Rule 28), HPL (Rule 29), Child Care Leave (Rule 43-C), substitution of Rule 44 by WRIL, omission of Rules 45 & 46.

- **Special Maternity Leave** — DoPT O.M. dated 02.09.2022 (60 days on stillbirth / death of a child soon after birth).
- **Organ-donor Special CL** — DoPT O.M. dated 25.04.2023 (up to 42 days).
- **Paternity / Child Adoption Leave** — G.S.R. 374(E) dated 15.05.2023 (Rules 43-AA & 43-B).
- **Surrogacy Amendment** — CCS (Leave) (Amendment) Rules, 2024, G.S.R. 331(E) dated 18.06.2024 (Rules 43, 43-A, 43-C).
- **Child Care Leave spell relaxation** — DoPT O.M. dated 29.07.2024 (hospitalisation relaxation; power delegated to sanctioning authority).
- **Consolidated rules updated as on 24.09.2024** and DoPT consolidated guidance O.M. dated 08.04.2025; DoPT Casual / Special Casual Leave Brochure.



Orientation: The Big Picture

Before diving into individual rules, it helps to hold the whole scheme in your head. The **CCS (Leave) Rules, 1972** answer four questions for every Central Government civil servant: **what kinds of leave exist, how much of each is earned, on what conditions it may be taken, and what happens to unused leave.** The rules are arranged in chapters that follow exactly this logic.

Leave falls into two broad families. **Ordinary leave** — Earned Leave, Half Pay Leave, Commuted Leave, Leave Not Due and Extraordinary Leave — is the everyday currency that an employee builds up and spends. **Special kinds of leave** — Maternity, Paternity, Child Adoption, Child Care, Work-Related Illness & Injury Leave, Study Leave and a few others — are granted for specific life events and usually do not touch the ordinary leave account at all.

* MEMORY HOOK

Two numbers anchor almost everything: **300** (the lifetime accumulation ceiling for Earned Leave and the overall encashment ceiling on retirement) and **730** (the lifetime ceiling for Child Care Leave). Fix these two, and the rest hangs off them.



Chapter I — Preliminary

The opening chapter sets the stage: it tells us when the rules began, who they cover, who they exclude, and what the key technical words mean.

Rule 1 — Short Title and Commencement

These rules are called the **Central Civil Services (Leave) Rules, 1972**. They were notified vide S.O. 940 dated 15 March 1972 and came into force on **1 June 1972**.

Rule 2 — Extent of Application

The rules apply to Government servants appointed to civil services and posts in connection with the affairs of the Union. Equally important is who they **do not** cover — a favourite examination point. The following nine categories are excluded:

- (a) Railway servants (governed by the Indian Railway Establishment Code).
- (b) Persons in casual and daily-rated employment.
- (c) Persons paid from contingencies.
- (d) Workmen employed in industrial establishments.
- (e) Persons in work-charged establishments.
- (f) Members of the All India Services — IAS, IPS and IFoS (governed by the AIS (Leave) Rules).
- (g) Persons locally recruited for diplomatic, consular or other Indian establishments abroad.
- (h) Persons employed on contract, unless the contract provides otherwise.
- (i) Persons on deputation to a Central Government Department from a State Government or other source for a limited period.

! EXAM TRAP — Railways and AIS

Candidates often forget that Railway servants and All India Service officers are outside these rules entirely. If a question places a Railway clerk or an IAS officer under the CCS (Leave) Rules, that framing itself is wrong.



Rule 3 — Definitions

Read these definitions once carefully; the rules that follow lean on them constantly.

- **Administrator** — an Administrator of a Union Territory.
- **Audit Officer** — the Accounts and Audit Officer who maintains and verifies the leave account.
- **Authority competent to grant leave** — the authority specified in the First Schedule for the particular kind of leave.
- **Completed years of service** — continuous service of the stated length under the Central Government, counting periods both on duty and on leave (including extraordinary leave).
- **Date of retirement** — the afternoon of the last day of the month in which the servant attains the prescribed retirement age.
- **Disability [Rule 3(fa)]** — means “specified disability”, “benchmark disability” and “disability having high support needs” as defined in the Rights of Persons with Disabilities Act, 2016 (49 of 2016). This definition was inserted to align the leave rules with the RPwD Act.
- **Foreign service** — service in which the servant draws pay, with Government sanction, from a source other than the Consolidated Fund of India, of a State, or of a Union Territory.
- **Vacation Department** — a department (or part of one) allowed regular vacations, during which its servants may be absent from duty (for example, certain teaching establishments). This status changes how Earned Leave is calculated — see Rule 28.
- **Government servant in permanent / quasi-permanent employ** — broadly, one holding a permanent post substantively or holding a lien on one (permanent), or one declared quasi-permanent under the CCS (Temporary Service) Rules, 1965.

Rules 4–6 — Transfers and Foreign Service

Rule 4 keeps a servant under these rules while on temporary transfer to the Railways or a State Government, or on foreign service within India. For foreign service **outside India** or transfer to the Armed Forces, the rules apply only as far as the terms of that transfer provide.



Rule 5 deals with the reverse movement. A permanent employee not normally under these rules, if transferred here temporarily, keeps his old leave rules; but on a substantive/permanent appointment to a post under these rules, these rules apply from the date of appointment.

Rule 6 covers a servant appointed to an industrial establishment: the competent authority must, *suo motu*, order the cash equivalent of Earned Leave at credit, capped at **300 days**.



Chapter II — General Conditions

This chapter lays down the principles that govern every kind of leave — the “rules about the rules”.

Rule 7 — Right to Leave

Leave cannot be claimed as a matter of right. This single sentence is the foundation of the whole scheme. When the exigencies of public service require, the competent authority may refuse or revoke leave of any kind. What the authority **cannot** do is change the kind of leave the servant asked for — that requires the servant’s written request.

§ GOVERNMENT DECISIONS

- Sanctioning authorities should positively encourage employees to take leave regularly.
- Leave should not ordinarily be denied during the last 10 years of service, so that an employee can use what he has earned.

Rule 8 — Regulation of Claim

A claim to leave is governed by the rules in force at the time the leave is applied for and granted — not by the rules as they stood when the leave was earned.

Rule 9 — Dismissal, Removal or Resignation

- **Cessation:** any claim to leave ceases from the date of dismissal, removal or resignation.
- **Resignation to take another appointment:** if tendered through proper channel to take up another appointment, leave at credit does not lapse.
- **Reinstatement:** a servant reinstated on appeal or revision may count pre-dismissal service for leave.
- **Re-employment:** one who retired on compensation/invalid pension/gratuity and is re-employed (with past service counting for pension) may count former service for leave.

Rule 10 — Commutation of One Kind of Leave into Another

On request, the authority may commute leave **retrospectively** into a different kind that was due and admissible when the leave was granted. The request must be made within **30 days** of the servant rejoining duty after the relevant spell. Extraordinary leave may be commuted retrospectively into Leave Not Due, subject to Rule 31.

§ GOVERNMENT DECISIONS

Commutation cannot be carried out after the employee has ceased to be in service.

Rule 11 — Combination of Different Kinds of Leave

Any kind of leave may be combined with, or taken in continuation of, any other kind — except where a rule says otherwise. The key exception: **Casual Leave is not “leave” under these rules and cannot be combined with any leave admissible under them.**

Rule 12 — Maximum Continuous Leave

- No servant may be granted leave of any kind for a continuous period exceeding **5 years**.
- **Exception:** the President may allow leave beyond 5 years in exceptional circumstances.
- **Deemed resignation:** absence from duty (with or without leave), other than on foreign service, for a continuous period exceeding 5 years is treated as resignation.
- **Disability shield:** this deemed-resignation rule does not apply where leave is on a medical certificate connected with a disability (read with Section 20 of the RPwD Act, 2016).

Rule 13 — Employment While on Leave

A servant on leave (including leave preparatory to retirement) must not take up other service or employment — including private professional practice — without prior sanction: **the President** if the employment is outside India, the **appointing authority** if it is within India.



Chapter III – Grant of and Return from Leave

Here the rules turn practical: how to apply, how the leave account is kept, how leave begins and ends, and what happens if a servant overstays.

Rule 14 – Application for Leave

Every application for leave or its extension is made in **Form 1** to the competent authority. A humane provision allows **proxy submission**: where a servant cannot apply or produce a medical certificate owing to a disability, the application may be signed and submitted by the spouse; the parents (if the servant is unmarried); a child (including adopted) or sibling who has attained majority; or a person with limited guardianship. Such submission is deemed to be made by the servant himself.

Rule 15 – Leave Account

- **Gazetted officers:** account maintained in **Form 2** by the Audit Officer.
- **Non-gazetted officers:** account maintained by the Head of Office or an authorised officer.

◆ UPDATE – e-HRMS and the electronic leave account

With the roll-out of **e-HRMS / the electronic Service Book**, leave accounts for all cadres are now generally maintained electronically by the Head of Office / Department, subject to verification. DoPT O.M. dated 26.02.2024 lays down service-delivery timelines for the Leave Module under e-HRMS 2.0.

Rule 16 – Verification of Title to Leave

No leave is sanctioned until the authority maintaining the account reports on its admissibility, and the sanction order must show the balance of EL / HPL. If that report is unduly delayed, the competent authority may grant a **provisional sanction up to 60 days** on the basis of available information.

Rule 17 – Leave Not to be Granted in Certain Cases

Leave shall not be granted to a servant whom the competent punishing authority has decided to dismiss, remove or compulsorily retire.

§ GOVERNMENT DECISIONS

- **Suspension:** leave is not granted to a servant under suspension.
- **Going abroad:** the sanctioning authority must obtain prior approval before granting leave to go abroad.

Rule 18 — [Omitted]

🔍 NOTE — why this number is blank

Rule 18 was omitted. Its earlier subject (leave on medical certificate for gazetted servants) is now governed, together with non-gazetted servants, by Rule 19.

Rule 19 — Leave on Medical Certificate

Rule 19 now governs medical-certificate leave for gazetted and non-gazetted servants alike. The medical authority is:

- **CGHS beneficiaries** — a doctor in a CGHS dispensary.
- **Others** — a doctor of a Government hospital, the Authorised Medical Attendant (AMA), or an authorised doctor of a CGHS-recognised private hospital.

Forms: medical certificate in **Form 3** (gazetted) or **Form 4** (non-gazetted); fitness certificate in **Form 5**. For non-gazetted servants, a certificate from a registered Ayurvedic, Unani or Homoeopathic practitioner, or a registered dentist (for dental ailments), may also be accepted.

Where a servant has **acquired a disability**, the medical authority certifies in **Form 3-A** the nature and extent of disability, its category, and the disability as specified under the RPwD Act, 2016. The competent authority may obtain a **second opinion** from a Government Medical Officer not below the rank of Civil Surgeon / Staff Surgeon, and may **waive the medical certificate** for leave up to 3 days at a time (debited against leave other than medical-grounds leave).

Rule 20 — Servant Unlikely to be Fit to Return

Even where the medical authority sees no reasonable prospect of recovery, leave is not automatically refused. If recovery is **uncertain**, leave up to **12 months** in all may be granted (not extendable without fresh medical reference). If the servant is declared **permanently incapacitated**, leave may be granted so long as the leave debited, plus any duty after the medical report, does not exceed 12 months.



Rule 21 — Commencement and Termination

Leave ordinarily begins on the day charge is handed over and ends on the day before charge is resumed.

Rule 22 — Combination of Holidays with Leave

Except in medical cases, a public holiday may be **prefixed and/or suffixed** to leave. In medical-certificate cases the holidays are handled automatically: holiday(s) immediately **before** the day certified unfit are prefixed, and holiday(s) immediately **after** the day certified fit (including that day) are suffixed. Restricted Holidays may be prefixed or suffixed to regular leave or casual leave.

Rule 23 — Recall to Duty

Recall before the leave expires is always treated as compulsory. The entitlements differ by where the servant is recalled from:

- **From within India** — on duty from the date of starting for the station; travelling allowance for the journey; leave salary at the same rate until joining.
- **From outside India** — voyage time counts as duty for leave; leave salary during the voyage and from landing to joining; free passage to India; refund of passage from India if less than half the leave (or 3 months, whichever is shorter) had elapsed; and TA from the landing place to the duty station.

Rule 24 — Return from Leave

A servant must not return before the leave granted expires unless permitted. One on medical-certificate leave may not resume until a **fitness certificate in Form 5** is produced. A servant recovering from **tuberculosis** may resume on a fitness certificate recommending light work.

Rule 25 — Absence After Expiry of Leave

Unless extended, absence after the leave ends carries **no leave salary**; the period is debited as HPL to the extent due, with any excess as EXOL. Wilful absence invites disciplinary action.



§ GOVERNMENT DECISIONS

- **Unauthorised absence / overstayal:** no pay and allowances.
- **Dies-non:** if not satisfied with the grounds, the authority may treat the period as “dies-non”; if satisfied, it may let the servant apply for suitable leave.
- **Break in service (FR 17-A):** unauthorised absence is deemed to interrupt service unless the authority decides otherwise for specific purposes such as LTC or examinations.
- **Increment:** a period of overstayal does not count for increment.



Chapter IV — Kinds of Leave Due and Admissible

This is the core of the rules. It defines each ordinary kind of leave, the rate at which it is earned, the ceilings that apply, and — crucially for the examination — exactly how unused leave is encashed when service ends.

Rule 26 — Earned Leave (Non-Vacation Departments)

Earned Leave (EL) is the everyday workhorse. It is credited **in advance**, in two instalments of **15 days each on 1 January and 1 July** — so a full year yields 30 days. Any un-availed portion of joining time is added to the EL account.

- **Accumulation ceiling — 300 days.** EL at credit can never exceed 300 days. (Where the balance is between 285 and 300 days, the fresh half-yearly credit of 15 days is held separately and first set off against leave actually taken that half-year, so the ceiling is not breached.)
- **Maximum granted at a time — 180 days** when employed in India.
- **Group 'A' & 'B' relaxation:** EL exceeding 180 but not exceeding 300 days may be granted if the whole or part of the leave is spent outside India, Bangladesh, Bhutan, Myanmar, Sri Lanka, Nepal and Pakistan.
- **Foreign service** counts as duty for EL/HPL credit if the leave-salary contribution is paid.

★ MEMORY HOOK

EL: “15 + 15 = 30 a year, 180 at one go, 300 in the bank.”

Rule 27 — Calculation of Earned Leave

EL accrues at **2½ days for each completed calendar month** of service the servant is likely to render in that half-year. For an incomplete half-year, credit is given at the same rate up to the relevant date, but the cut-off differs by reason:

- **Retirement or resignation** — 2½ days per completed month up to the date of the event.
- **Death in service** — 2½ days per completed month up to the date of death.
- **Removal or dismissal** — 2½ days per completed month up to the end of the month preceding the removal/dismissal (note the one-month penalty).

- **Reduction for EXOL / dies-non:** if extraordinary leave is availed, or a period is treated as dies-non, in a half-year, the next half-year's credit is reduced by 1/10th of that period, subject to a maximum reduction of 15 days.
- **Rounding** — fractions of a day are rounded to the nearest day.

► **WORKED EXAMPLE — reduction for extraordinary leave**

A servant avails 84 days of EXOL / dies-non during July–December 2023.

Reduction = $84 \times 1/10 = 8.4$, rounded to **8 days**.

Credit on 1 January 2024 = $15 - 8 = 7$ **days**.

Rule 28 — Earned Leave (Vacation Departments)

Servants in a Vacation Department earn EL differently, because they already enjoy vacations. EL is credited in two instalments of **5 days each on 1 January and 1 July**. If the servant avails only **part** of the vacation in a year, he earns additional EL in the same proportion of **20 days** as the vacation not taken bears to the full vacation — but the total EL credited in a calendar year cannot exceed 30 days. If **no** vacation is availed, EL is admissible as under Rule 26. The 300-day accumulation ceiling applies here too.

✓ **VERIFIED — the “twenty days” figure (Rule 28)**

Sources conflict on this point. The **current** text of Rule 28(1)(b) — substituted by the Fourth Amendment Rules, 2018 [G.S.R. 1209(E) dated 11.12.2018, effective 14.12.2018] — reads “additional earned leave in such proportion of **twenty days**... provided the total earned leave credited shall not exceed thirty days in a calendar year.”

Older compilations (and pre-2018 reproductions) still show “**thirty days**”. That is the 2009 version and is now out of date. Use **twenty days**.

Rule 29 — Half Pay Leave (HPL)

HPL is the second pillar. It is credited in advance in two instalments of **10 days each on 1 January and 1 July** (20 days a year), accruing at **5/3 days per completed calendar month**. Its great feature: there is **no ceiling on accumulation**. HPL may be taken on a medical certificate **or** for private affairs.

- **Retirement / resignation** — 5/3 days per completed month up to the date of the event.



- **Death in service** — 5/3 days per completed month up to the date of death.
- **Removal / dismissal** — 5/3 days per completed month up to the preceding month.
- **Reduction:** a period of absence/suspension treated as dies-non reduces the next half-year's credit by 1/18th, subject to a maximum of 10 days.

► **WORKED EXAMPLE — reduction in HPL**

85 days of unauthorised absence (dies-non) during July–December 2023.

Reduction = $85 \times 1/18 = 4.72$, rounded to **5 days**.

Credit on 1 January 2024 = $10 - 5 = 5$ **days**.

🔪 **NOTE — vacation-department servants and HPL**

After the 2018 amendment, a servant serving in a Vacation Department is given Earned Leave in place of the standard HPL credit; the two-instalment HPL credit above is for non-vacation servants (other than military officers).

Rule 30 — Commuted Leave

Commuted Leave lets a servant convert HPL into **full-pay** leave on a medical certificate. The price is paid in the leave account: **twice** the commuted leave is debited against HPL (2 days HPL for every 1 day taken). It is limited to **half the HPL due**. For an approved course of study in the public interest, up to **180 days** HPL may be commuted without a medical certificate during the whole service.

- **Recovery on resignation:** if the servant resigns or retires voluntarily without returning to duty, commuted leave is treated as HPL and the leave-salary difference recovered — unless retirement is due to ill-health incapacitating further service, or death.
- Commuted leave may be granted even when Earned Leave is still due.

§ GOVERNMENT DECISIONS

- **Adoption:** commuted leave up to 60 days without a medical certificate is admissible to a female servant on adoption of a child.
- **Maternity continuation:** no medical certificate is needed for commuted leave taken in continuation of Maternity Leave.



Rule 31 — Leave Not Due (LND)

Leave Not Due is, in effect, an **advance against HPL not yet earned**. It may be granted to a permanent or quasi-permanent servant, on a medical certificate, up to a lifetime maximum of **360 days**, provided the authority is satisfied there is a reasonable prospect of return, the amount is limited to the HPL the servant is likely to earn afterwards, and it is debited against future HPL.

Temporary servants suffering from TB, leprosy, cancer or mental illness may also be granted LND up to 360 days during the whole service, subject to the above plus: at least one year's service, the post being likely to last till return, and support of a medical certificate.

- **Recovery:** if the servant resigns/retires voluntarily without returning, the LND is cancelled — retirement takes effect from the date the leave began and the leave salary is recovered. If he returns but leaves before earning the credit back, he refunds salary for the unearned portion.
- **Exception:** no recovery where retirement is due to ill-health incapacitating further service, on premature compulsory retirement under the Pension Rules / FR 56(j)/(l), or on death.

§ GOVERNMENT DECISIONS

- **Adoptive mothers** and **maternity continuation** — no medical certificate is required.
- **Child Care:** LND, and Child Care Leave, may be granted without a medical certificate.

Rule 32 — Extraordinary Leave (EXOL)

Extraordinary Leave is leave **without leave salary**, granted when no other leave is admissible, or when other leave is admissible but the servant asks in writing for EXOL. For a permanent servant there is effectively no limit (subject to Rule 12). For a **non-permanent** servant, the limits on any one occasion are:

- **3 months** — normal condition, no minimum service.
- **6 months** — one year's continuous service (including the 3 months above) and a medical certificate.



- **18 months** — one year's service, undergoing treatment for pulmonary TB / pleurisy of tubercular origin, TB of other parts, leprosy, cancer or mental illness in a recognised institution.
- **24 months** — three years' service, for prosecuting studies certified to be in the public interest.
- **Study bond:** for EXOL for studies, if the servant fails to return or quits within 3 years of return, he executes a bond in **Form 6** to refund the Government's (and any other agency's) expenditure with interest, backed by two permanent-servant sureties of comparable or higher status.
- **SC/ST training:** EXOL may be granted by the Head of Department to attend notified pre-examination training courses.
- **Two spells** of EXOL separated by other leave are treated as one continuous spell for these limits; and periods of absence without leave may be commuted retrospectively into EXOL.

§ GOVERNMENT DECISIONS

A notice of Voluntary Retirement can be accepted from a servant already on EXOL.

Rule 33 — Probationers and Apprentices

- **Probationer:** entitled to leave under these rules if he had held the post substantively otherwise than on probation; with a lien on a permanent post, he is treated as a permanent servant.
- **Apprentice:** entitled to (a) leave on medical certificate at half-pay leave salary, up to one month in any year of apprenticeship; and (b) extraordinary leave under Rule 32.

Rule 34 — Persons Re-employed After Retirement

For a person re-employed after retirement, these rules apply as if he had entered Government service afresh on the date of re-employment. (Rules 35, 36 and 37 stand deleted.)

Rule 38 — Leave Preparatory to Retirement (LPR)

LPR lets a servant exhaust leave at credit just before retirement, to the extent of Earned Leave due (not exceeding **300 days**) together with HPL due, provided the leave runs up to and includes the date of retirement. **LPR cannot include extraordinary leave.**



Rule 38-A — Encashment of Earned Leave with LTC

While **in service**, a servant may encash up to **10 days** of EL each time he avails Leave Travel Concession, on three conditions: at least **30 days** of EL must remain at credit afterwards; the lifetime total so encashed must not exceed **60 days**; and the cash is computed as below.

Cash equivalent = (Pay + DA on the date of availing LTC) × (number of days of EL, max 10) ÷ 30.

- **Important:** this LTC encashment is separate from, and not deducted from, the leave that can be encashed at retirement under Rules 6, 39, 39-A, 39-B, 39-C and 39-D.

! EXAM TRAP — the 30-day floor

If encashing 10 days plus the leave actually taken for the journey would drop the EL balance below 30 days, the encashment is refused. Example: with 35 days EL, asking to encash 10 and taking 2 days for travel leaves 23 days — below the floor, so the request fails.

Rule 39 — Leave / Cash Payment Beyond Retirement

No leave is granted beyond the date of retirement, final cessation of duties, or resignation. What the servant gets instead is **cash**. The rules differ sharply by how service ends — a rich source of questions.

- **Superannuation / normal retirement:** cash equivalent of leave salary for **both EL and HPL**, subject to a cumulative maximum of **300 days**.
 - **EL component** = (Pay + DA) × **unutilised EL** ÷ 30.
 - **HPL component** = (half-pay leave salary + DA) × **HPL** ÷ 30.
 - EL is counted first; HPL fills the balance up to 300 days. **To make up a shortfall in EL, HPL cannot be commuted.**
- **Resignation or quitting service:** cash equivalent of **Earned Leave only**, to the extent of **half** the EL at credit, subject to a maximum of **150 days**. (HPL is **not** encashed on resignation.)
- **Termination by notice / compulsory retirement as penalty (no pension cut):** EL + HPL up to 300 days; for penalty-based compulsory retirement, EL up to 300 days.
- **Service extended in public interest:** cash equivalent up to 300 days after the extension.



- **Withholding [Rule 39(3)]:** if the servant retires while under suspension or with disciplinary/criminal proceedings pending, the authority may withhold the cash equivalent where money may become recoverable; the balance is released on conclusion after adjusting dues.

* MEMORY HOOK

Retirement = up to 300 (EL + HPL). Resignation = half your EL, max 150, no HPL. That contrast is the single most-tested point in Rule 39.

Rules 39-A to 39-D — Death, Invalidation, Absorption

- **Death in service (39-A):** cash equivalent of EL + HPL up to 300 days is paid to the family.
- **Invalidation (39-B):** a servant declared completely and permanently incapacitated gets EL + HPL up to 300 days. A non-permanent / quasi-permanent servant is **not** paid the HPL component on invalidation.
- **Order of payment to family (39-C):** (i) widow / husband → (ii) eldest surviving son / adopted son → (iii) eldest unmarried daughter → (iv) eldest widowed daughter → (v) father → (vi) mother → (vii) eldest surviving married daughter → (viii) eldest surviving brother below 18 years → (ix) eldest unmarried sister → (x) eldest widowed sister → (xi) eldest child of the eldest pre-deceased son.
- **Permanent absorption in a PSU / autonomous body (39-D):** cash equivalent of EL at credit on the date of absorption, up to 300 days.

Rules 40–42 — Leave Salary and Advances

- **Leave salary (Rule 40):** on EL — the pay drawn immediately before the leave; on HPL or LND — half that amount; on commuted leave — the full amount; on EXOL — nil.
- **Drawal (Rule 41):** leave salary is drawn in rupees in India.
- **Advance (Rule 42):** a servant proceeding on leave of not less than 30 days may be allowed an advance up to a month's pay and allowances admissible on that leave salary, subject to the usual deductions.



Chapter V — Special Kinds of Leave

Special kinds of leave are granted for particular life events. A theme runs through most of them: they are **not debited to the ordinary leave account** and are paid at full pay. Watch the recent surrogacy additions of 2024 — they are exactly the kind of fresh point examiners reach for.

Rule 43 — Maternity Leave

- **Who:** a female Government servant (including an apprentice) with less than two surviving children.
- **Duration:** up to 180 days from the date of commencement, on leave salary equal to the pay drawn immediately before the leave.
- **Miscarriage / abortion:** up to 45 days in the entire service, irrespective of the number of surviving children, on a medical certificate. (Not admissible for a “threatened abortion”.)
- **Not debited** to the leave account; may be combined with any other kind of leave.
- **Continuation:** leave of the kind due (including commuted leave up to 60 days and Leave Not Due) may be granted in continuation of Maternity Leave, up to a maximum of 2 years.

◆ UPDATE — Special Maternity Leave — 60 days (O.M. dated 02.09.2022)

Where a child dies soon after birth (within **28 days**) or in the case of **stillbirth** (no sign of life at or after 28 weeks of gestation), a female servant with less than two surviving children is entitled to **60 days** of Special Maternity Leave. If Maternity Leave had already been availed, it is converted to other admissible leave and the Special Maternity Leave is granted from the date of death / stillbirth. (Reiterated in DoPT O.M. dated 08.04.2025.)

◆ UPDATE — Surrogacy — Rule 43(6), inserted by G.S.R. 331(E) dated 18.06.2024

In case of surrogacy, **both the surrogate mother and the commissioning mother**, each with less than two surviving children, may be granted Maternity Leave of **180 days**, where either or both of them are Government servants.

- **Commissioning mother** — the intending mother of the child born through surrogacy.
- **Surrogate mother** — the woman who bears the child on behalf of the commissioning mother.

Rule 43-A — Paternity Leave

- **Who:** a male Government servant (including an apprentice) with less than two surviving children.
- **Duration:** 15 days, on full leave salary.
- **Timing:** during the wife's confinement — up to 15 days before, or up to 6 months from, the date of delivery.
- **Single spell / lapse:** availed in a single spell; if not taken within the period above, it lapses. Not debited to the leave account; shall not normally be refused.

◆ UPDATE — Surrogacy — Rule 43-A(6), inserted by G.S.R. 331(E) dated 18.06.2024

For a child begotten through surrogacy, the **commissioning father** (a male Government servant with less than two surviving children) may be granted **15 days** of Paternity Leave within 6 months from the date of delivery.

Rule 43-AA — Paternity Leave for Child Adoption

A male servant with less than two surviving children, on valid adoption of a child below **one year** (or on accepting such a child in pre-adoption foster care), may be granted **15 days** within 6 months from the date of adoption / foster care. (As amended by G.S.R. 374(E) dated 15.05.2023.)

Rule 43-B — Child Adoption Leave

- **Who:** a female servant with less than two surviving children, on valid adoption of a child below one year.
- **Duration:** 180 days immediately after adoption, on full leave salary.
- **Continuation:** leave of the kind due (including commuted leave up to 60 days and LND) may be granted up to one year, reduced by the age of the adopted child on the date of adoption. (As amended by G.S.R. 374(E) dated 15.05.2023.)



Rule 43-C — Child Care Leave (CCL)

- **Maximum:** 730 days during the entire service.
- **Purpose:** to care for the two eldest surviving children — for rearing, education, sickness and the like.
- **Who:** women employees and **single male** Government servants (an unmarried, widower or divorcee servant).
- **Payment:** 100% of leave salary for the first 365 days, and 80% for the next 365 days.
- **Not debited** to the leave account; intervening Saturdays, Sundays and holidays count as CCL (as with Earned Leave); may be combined with other leave; LTC may be availed during CCL.

Age of the child / disability — the nuance to get right: ordinarily the child must be below **18 years**. For a child with a **minimum 40% disability**, the rule text refers to “below 22 years”, but DoPT later **removed the 22-year age limit** altogether (O.M. No. 13018/6/2013-Estt.(L)), so in practice CCL for a disabled child has **no age cap**, subject to the disability certificate and the child’s dependency on the servant.

Conditions on spells:

- Not granted for less than 5 days at a time.
- Not more than 3 spells in a calendar year; for a single female servant, extended to 6 spells.
- Not ordinarily granted during probation.
- Cannot be demanded as of right; prior sanction is essential.

◆ **UPDATE — Surrogacy & spell relaxation (2024)**

- **Surrogacy — Rule 43-C(8), G.S.R. 331(E) dated 18.06.2024:** in case of surrogacy, the commissioning mother (with less than two surviving children) may be granted Child Care Leave.
- **Hospitalisation relaxation — DoPT O.M. dated 29.07.2024:** up to 3 additional spells may be allowed where the child is hospitalised; the power to relax the number of spells now rests with the Leave Sanctioning Authority in the Ministry / Department.

**! EXAM TRAP — CCL spells and minimum days**

Two figures are commonly tested and commonly mis-stated: the minimum spell is 5 days (not 15 — the 15-day figure is pre-2018), and a single mother gets 6 spells a year against the normal 3.

Rule 44 — Work-Related Illness and Injury Leave (WRIIL)

WRIIL replaced the old “Special Disability Leave” regime by the 2018 amendment (Rules 45 and 46 were omitted). It is granted to any servant — permanent or temporary — who suffers illness or injury attributable to, or aggravated in, the performance of official duties or in consequence of official position, subject to Rule 19(1).

- **During hospitalisation:** full pay and allowances for the entire period.

Beyond hospitalisation — three categories:

- **Government servants (other than military officers):** full pay for 6 months immediately after hospitalisation, then half pay for 12 months. The half-pay period may be commuted to full pay, with a corresponding number of days of HPL debited.
- **Officers of the CAPF:** full pay for 6 months, then full pay only for the next 24 months.
- **Personnel below officer rank of the CAPF:** full pay and allowances, with no limit on the period.
- **Workmen’s Compensation Act, 1923:** where it applies, the WRIIL leave salary is reduced by the compensation paid under the Act.
- **Credit:** no EL or HPL is credited during WRIIL.

Rule 47 — Seamen’s Sick Leave

A special provision for seamen’s sick leave (relevant only to that limited class).

Rule 48 — Special Leave Connected with Sexual-Harassment Inquiry

On the recommendation of the Internal Committee (or Local Committee) under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, an aggrieved female servant may be granted up to **90 days** of leave during the pendency of the inquiry. It is **not debited** to the leave account. (Inserted vide DoPT Notification dated 15.03.2017.)



Rule 49 — Departmental Leave

Applicable to Survey of India staff: not more than 6 months at a time (extendable to 18 months in special cases). It is not debited to the leave account and does not count as duty; leave salary is 25% of Earned Leave salary.



Chapter VI — Study Leave

Study Leave enables a servant to pursue higher studies or specialised training that benefits the public service. It carries its own conditions, financial terms and service bond.

Rules 50–51 — Conditions and Maximum

- **Purpose:** higher studies or specialised training in a professional / technical subject directly connected with the servant's work, or capable of widening his outlook so as to improve his abilities, certified to be of definite advantage in the public interest.
- **Service requirement:** satisfactory completion of probation and not less than 5 years' regular continuous service.
- **Retirement bar:** not granted if the applicant is due to retire within 3 years of return (5 years for the Central Health Service).
- **Bond:** the servant executes a bond to serve the Government for 3 years after return (5 years for the Health Service).
- **Maximum amount:** 12 months at any one time; 24 months during the entire service. For Central Health Service medical officers, up to 36 months for post-graduation.

NOTE — combination limit (Rule 54)

Study leave combined with leave other than extraordinary leave shall not involve a total absence of more than 28 months generally — or 36 months for courses leading to a PhD.

Rules 56–63 — Financial Conditions

- **Leave salary:** pay drawn on duty plus DA and HRA; no other allowances.
- **Scholarships:** if a scholarship or stipend is received, leave salary is adjusted but not reduced below half-pay leave salary.
- **Fees / TA:** ordinarily borne by the servant, unless the President sanctions otherwise in exceptional cases.
- **Resignation:** if the servant resigns within 3 years of return, or fails to complete the course, he refunds the actual leave salary, study allowance, fees and travelling expenses incurred by the Government, with interest.



Casual Leave & Special Casual Leave

Casual Leave (CL) and Special Casual Leave (SCL) sit **outside** the CCS (Leave) Rules — they are governed by a separate DoPT Brochure and executive instructions. They are included here because they are tested heavily, and because their figures are frequently mis-remembered.

Casual Leave (CL)

- **Status:** not a recognised form of leave; the official is **not** treated as absent from duty.
- **Combination:** may be combined with Special Casual Leave, but not with any regular leave (EL/HPL) or joining time.
- **Half day** may be taken; normally not more than 5 days at one time.
- **Holidays:** Sundays / closed holidays falling within a CL spell are not counted as CL; they may be prefixed or suffixed (as may Restricted Holidays).

Entitlement per calendar year:

- **8 days** — for employees entitled to 17 gazetted holidays.
- **10 days** — for those not entitled to 17 holidays (certain industrial employees).
- **12 days** — for employees with disabilities (8 + 4 additional days).

Special Casual Leave (SCL)

SCL is granted for specified purposes — sports, family-welfare operations, blood / organ donation, natural calamities, recognised-union work, and the like. The family-welfare figures below are from the **DoPT Casual / Special Casual Leave Brochure** and are the ones to memorise.

Family-welfare (sterilisation) operations:

- **Male — vasectomy:** up to 6 working days (and a further 6 working days if a second operation is needed because the first failed).
- **Male — wife's tubectomy / salpingectomy:** up to 7 days (first or second time, including under MTP), on a medical certificate.
- **Female — tubectomy / salpingectomy:** up to 14 days (puerperal / non-puerperal, including laparoscopic; first or second time). Salpingectomy after MTP — up to 14 days.

- **Female — IUCD insertion / re-insertion:** 1 day (the day of the procedure).
- **Female whose husband undergoes vasectomy:** 1 day (the day of the operation).
- **Recanalisation:** up to 21 days, or the actual hospitalisation period certified by the AMA, whichever is less.
- **Post-operative complications:** additional SCL covering hospitalisation, with ceilings of 7 days (post-vasectomy) and 14 days (post-tubectomy).

Other Special Casual Leave:

- **Sports / mountaineering:** up to 30 days in a calendar year for National / International events, coaching or mountaineering expeditions; inter-ministerial / inter-departmental tournaments — up to 10 days.
- **Cultural competitions:** up to 15 days for dancing / singing competitions at Regional, National or International level (not for local practice).
- **Organ donation:** up to 42 days for donating an organ to another human being — DoPT O.M. dated 25.04.2023, notwithstanding the 30-day SCL ceiling. Normally taken in one stretch from the day of hospital admission (and may begin up to one week before surgery on medical advice).
- **Blood donation:** 1 day on the day of donation; extended to blood-component donation (apheresis — platelets, plasma, red cells, etc.) up to four times a year (O.M. dated 28.12.2017).
- **Natural calamities / bandh:** Heads of Department may grant SCL to employees unable to attend office owing to curfew, bandh or failure of transport.
- **Recognised-union activity:** office-bearers of recognised associations — up to 20 days; outstation delegates — up to 10 days; local delegates / Staff-side consultations — up to 5 days.

✓ **VERIFIED — family-welfare SCL figures**

Older study material often shows 5 / 3 / 10 days for vasectomy / husband-of-tubectomy / female-tubectomy. The current DoPT Brochure figures are 6 / 7 / 14 days respectively, with post-complication ceilings of 7 and 14 days. Use the 6 / 7 / 14 figures.

🔪 **NOTE — intervening holidays in SCL**

Unlike Casual Leave, Sundays and closed holidays falling within a spell of Special Casual Leave are counted towards the maximum entitlement for that purpose.



Quick-Reference Tables

Consolidated for last-minute revision. Every figure here matches the position updated to the surrogacy amendment (18.06.2024) and DoPT O.M. dated 08.04.2025.

Table 1 — Ordinary Leave (Rules 26–32)

Rule	Leave type	Entitlement	Accumulation	Key conditions
26-27	Earned Leave (EL)	30/yr (15+15, 1 Jan & 1 Jul); 2½ days/month	300 days	Max 180 days at a time (300 if spent abroad, Gr. A/B).
28	EL — Vacation Dept.	5+5/yr; pro-rata of 20 days if part vacation (≤ 30 /yr)	300 days	Full EL (Rule 26) if no vacation availed.
29	Half Pay Leave (HPL)	20/yr (10+10); 5/3 days/month	No ceiling	Medical or private affairs; not for vacation-dept staff.
30	Commutated Leave	$\leq \frac{1}{2}$ of HPL due	—	On MC; debited 2 HPL : 1 day; ≤ 180 days for study w/o MC.
31	Leave Not Due (LND)	Max 360 days (whole service)	—	On MC; reasonable prospect of return; debited to future HPL.
32	Extraordinary Leave	3 / 6 / 18 / 24 months by case	—	No leave salary; permanent staff effectively unlimited.

Table 2 — Encashment of Leave (Rules 38-A, 39–39-D)

Event	What is encashed	Ceiling	Notes
Superannuation / normal retirement	EL + HPL	300 days	EL counted first; HPL cannot be commuted to fill EL shortfall.
Resignation / quitting service	Earned Leave only ($\frac{1}{2}$ of EL)	150 days	HPL is NOT encashed on resignation.
Death in service (39-A)	EL + HPL	300 days	Paid to family per Rule 39-C order of precedence.



Event	What is encashed	Ceiling	Notes
Invalidation (39-B)	EL + HPL	300 days	Non-permanent staff: no HPL component.
Encashment with LTC (38-A)	EL (≤ 10 days per LTC)	60 days career	≥ 30 days EL must remain; separate from retirement ceiling.
Absorption in PSU (39-D)	Earned Leave	300 days	Cash equivalent of EL at credit on date of absorption.

Table 3 – Special Kinds of Leave (Rules 43–49)

Rule	Leave type	Quantum	Key points (incl. 2024 updates)
43	Maternity Leave	180 days	Female, <2 children; miscarriage/abortion 45 days; Special ML 60 days on stillbirth/death ≤ 28 days; surrogacy – surrogate & commissioning mother 180 days.
43-A / 43-AA	Paternity Leave	15 days	Male, <2 children; within 6 months; surrogacy – commissioning father 15 days; adoption (43-AA) child <1 yr.
43-B	Child Adoption Leave	180 days	Female, <2 children; child <1 yr; continuation up to 1 yr less child's age.
43-C	Child Care Leave	730 days	Women & single male parents; child <18 yr (no age cap if 40% disability); 100% then 80% pay; 5-day min, 3 spells (6 for single mother); surrogacy – commissioning mother.
44	WRIIL	Full pay (hospitalisation)	Post-hosp.: 6 mo full + 12 mo half (commutable); CAPF officers +24 mo full; below-officer CAPF no limit; no EL/HPL credit.
48	Sexual-harassment inquiry	Up to 90 days	Aggrieved female; on Committee recommendation; not debited.
50-51	Study Leave	12 mo at a time; 24 mo career (CHS 36)	Min 5 yrs service; bond 3 yrs (Health 5); not within 3 yrs of retirement.

Table 4 – Casual & Special Casual Leave

Item	Quantum	Remarks
Casual Leave – general / industrial / PwD	8 / 10 / 12 days/yr	Not absence from duty; lapses annually; not combinable with EL/HPL.
SCL – vasectomy (male)	6 working days	+6 days if second operation due to failure of the first.
SCL – wife's tubectomy (male)	7 days	First or second time; on medical certificate.
SCL – tubectomy / salpingectomy (female)	14 days	Incl. laparoscopic & post-MTP; first or second time.
SCL – IUCD (female)	1 day	Day of insertion / re-insertion.
SCL – recanalisation	Up to 21 days	Or actual hospitalisation, whichever is less.
SCL – organ donation	Up to 42 days	O.M. 25.04.2023; one stretch from admission.
SCL – blood donation	1 day (×4/yr apheresis)	Day of donation; component donation up to 4 times a year.
SCL – sports / mountaineering	Up to 30 days	10 days for inter-ministerial tournaments; cultural 15 days.

★ FINAL REVISION – THE NUMBERS THAT WIN MARKS

- **300** – EL accumulation ceiling; overall encashment ceiling on retirement/death/invalidation.
- **180** – max EL at one time; Maternity Leave; Child Adoption Leave.
- **150** – max EL encashment on resignation (half of EL).
- **730** – Child Care Leave over the whole service (100% then 80%).
- **360** – Leave Not Due over the whole service.
- **90 / 60 / 42 / 15** – sexual-harassment inquiry / Special Maternity / organ donation / Paternity & adoption leave.

◆ A FINAL WORD ON CURRENCY



Service rules move with each DoPT notification. This edition is current to the consolidated CCS (Leave) Rules as on **24.09.2024**, read with the surrogacy amendment of 18.06.2024 and DoPT O.M. dated 08.04.2025. Before quoting any figure in an answer or applying it in office, confirm it against the live text on **dopt.gov.in** and the governing Gazette notification.

— *End of Notes* —

Dak Guru — Learn. Practice. Succeed. • www.dakguru.com